

Court No. - 3

Case :- WRIT - C No. - 23081 of 2022

Petitioner :- Jamil Ahmad

Respondent :- State Of U.P. Ad 2 Others

Counsel for Petitioner :- Surendra Nath Tripathi

Counsel for Respondent :- CSC,Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Surendra Singh-I,J.

Heard Sri Surendra Nath Tripathi, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Pranjal Mehrotra, learned counsel for the respondent No. 2.

This writ petition has been filed praying for the following relief:

"(a). issue a writ, order or direction in the nature of certiorari quashing the impugned recovery certificate of Rs. 784373 dated 26-05-2022 issued by Tehsildar, Tehsil Bilaspur, District Rampur.

(b) issue a writ, order or direction in the nature of mandamus directing the respondent no. 2 to decide the application of the petitioner regarding recovery of Rs. 784373/-"

Sri Pranjal Mehrotra, learned counsel for the respondent No. 2, Sub Division officer/Executive Engineer, Electricity Department, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his objection under **Para 6.8 of U.P. Electricity Supply Code, 2005** before the respondent No. 2, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 16.8.2022

Brijesh Maurya